

Board of Supervisors

Section 1.3 Police Report Writing

Although the Police Department's report writing has improved in recent years, according to the District Attorney's Office, report-writing deficiencies are still one of the factors contributing to the high number of cases turned down for prosecution by the DA's Office.

- According to the DA's Office and a study by the Coro Foundation, some factors contributing to poor report writing are the reversal of report-writing techniques learned in the Police Academy through consistent exposure to other members of the Department, and the Department's past and current recruiting policies.
- We performed an independent review of a random sample of 40 incident reports for cases that were rejected by the DA. Although the reports appeared to be of fair to good quality, we found that many reports were missing critical elements such as descriptions of the steps of the Police Officer's investigation and personal observations. In addition, there was often no corroboration of the reporting party's statements that would normally be achieved by attempting to locate potential witnesses.
- In order to improve the quality of Police report-writing, and further reduce the impact of reports on the DA's ability to file formal charges in cases, the Police Department should expand and improve report-writing instruction at the Police Academy and consider, as a policy matter, implementing less restrictive residency and higher education requirements for new officer recruits. Additionally, the SFPD should request that the DA's Office develop a formal system for returning any substandard Police reports back to the Police Department for review, evaluation and corrective action.

In the past, the Police Department has been repeatedly criticized for the poor quality of Police reports. Although there has been improvement, according to the DA's Office, deficiencies in report writing are still one of the factors contributing to the relatively high number of cases being discharged.

During the 28-week SFPD Academy basic training course sanctioned by Peace Officers Standards and Training (POST), Police Officer recruits receive approximately 60 hours of training in report-writing, consisting of 28 two to four hour sessions. At the end of the course, recruits take a separate final exam for report-writing, in addition to the POST exam. Police Academy classes stress the importance of complete and thorough reports and provide standards and guidelines to assist recruits in writing reports. However, according to staff from the DA's Office, Field Training Officers and other members of the Police Department tend to encourage recruits to be as concise as possible in writing reports, essentially advising them to forget the report-writing techniques learned at the Police Academy. This observation was also cited by a study by the Coro Foundation.

In addition, the Coro Foundation's study cited other reasons for deficiencies in report-writing by the SFPD. For example, the report stated that approximately one-third of recruits wrote at below the eighth grade level when they entered the Police Academy, although by the time they finished, about 75 percent of recruits were at the twelfth grade level. The Coro Foundation's study attributed this deficiency in part to the SFPD's San Francisco residency requirement for new officer recruits, which significantly reduced the number of qualified applicants available. Based on statistics published by the U.S. Department of Justice, Bureau of Justice Statistics, 33 (70 percent) of the 47 cities with populations over 350,000 nationwide recruit new police officers from outside the municipality, including 18 cities (38 percent) with no residency requirement whatsoever. As of the writing of this report, the Department had expanded the residency requirement to include six other Bay Area counties, thereby increasing the pool of potential applicants.

However, the SFPD's minimum education requirement of a high school diploma for new officer recruits may also limit the number of qualified candidates applying for the Police Officer position. Based on statistics from the U.S. Department of Justice, 23 percent of the nation's cities with populations over 350,000 require at least some college education for new officer recruits, including San Jose, Sacramento and Fresno.

The Department has attempted to make improvements in report-writing in recent years. For example, the Department adopted a new training curriculum in the early 1990s that replaced the POST-mandated multiple choice test with a test that requires recruits to write actual incident reports as part of the exam. According to the SFPD, this new curriculum has been adopted by POST and is now used Statewide. The Police Academy has also periodically sponsored report-writing classes, taught by Assistant District Attorneys, for Sergeants and Field Training Officers who are responsible for reviewing patrol officers' incident reports. Additionally, the Department attempts to reward officers who obtain an advanced education by awarding extra points on promotional examinations and has expanded recruitment efforts at local colleges and universities. Lastly, the Police Department, through a Federal Grant program, is currently in the process of purchasing and installing laptop computers in patrol vehicles, which will automate the report-writing process and allow officers to write reports while in the field without having to return to the station. These laptops will eventually be programmed to provide "cues" to patrol officers while writing up reports in order to ensure that all the necessary information is provided.

Results of Our Review of Police Reports

Although staff from the DA's Office advise that the quality of Police reports has improved, further improvement is needed. We reviewed a random sample of 40 incident reports for rebookings and suspect cases which were not prosecuted by the DA's Office. We selected these reports in order to evaluate the overall quality of incident reports for cases that were not prosecuted by the DA. This sample represented a statistically valid, but not necessarily statistically significant, sample of incident reports. As such, we were not attempting to draw conclusions as to the reasons why the DA refused to prosecute these particular cases, but rather were attempting to perform a qualitative review of Police report writing and to identify opportunities for improvement.

We compared these reports to the written guidelines and standards provided to Police recruits during basic training. Some of these guidelines include:

- The title and coding for the type of crime, premises and weapon should be correct and as specific as possible;
- The report should be typed on a computer or legibly handwritten;
- The reportee information should be complete (e.g. date of birth, home and business address, day and evening phone numbers);
- The suspect information should be as detailed as possible (e.g. specific age, height and weight, hair color and length, detailed clothing description);

- A written statement from the victim and witness should be included;
- The narrative should begin with the officer's arrival at the scene and should: (a) contain the officer's personal observations of both the victim and the premises; (b) record each step of the investigation; (c) provide a complete and extremely detailed description of the alleged offense; (d) record the suspect's words verbatim in quotation marks; and (e) record any spontaneous statements made by the suspect.

Although the reports we reviewed appeared to be of fair to good quality, some critical elements were missing from many of the reports. We made the following general observations:

- While all of the reports included most of the basic necessary information (e.g., names, addresses, phone numbers) of the parties involved, other useful information, such as a witness's relationship to the victim or an alternative phone number for the victim and/or reporting party, was often missing.
- Written statements from the reporting party, victims and/or witnesses were often not provided. The reports did not indicate whether this was because the parties involved refused to provide written statements or because the reporting officers did not request written statements.
- The narratives written by the reporting Police Officers varied significantly in detail and were anywhere from five lines to two pages long. Some reports were very short and did not provide nearly the level of detail necessary. Many narratives contained grammatical and sentence structure errors. Most narratives were simply a description of the reporting party's statement of what had occurred, and often did not describe the steps of the Police Officer's investigation. Few of the narrative statements contained any type of personal observations made by the reporting Police Officers regarding, for example, the behavior of the victims and/or witnesses, the appearance of the premises, etc.
- In cases in which a suspect had not been identified, the reporting Police Officer did not always document in his/her report whether an attempt had been made to obtain some kind of descriptive information on the suspect from the reporting party or from potential witnesses. In many cases, the reports did not indicate whether there was any attempt by the Police Officer to locate, identify and interview potential witnesses who could corroborate the reporting party's statements.

Opportunities for Improvement

In order to improve the quality of Police report writing, the Police Department should take the following steps:

- Our analysis of discharge codes in Section 1 (**Investigations: Introduction**) and our conversations with the DA's Office demonstrated that one of the reasons why the DA refuses to prosecute cases is often due to evidence and witness problems, particularly a lack of corroboration. As such, the Police Academy's report-writing classes should place a relatively greater emphasis on teaching officers to provide more than the basic facts of the case in their narrative statements, but also to provide corroborating facts, observations and testimony, when possible. For example, incident reports should be evaluated on the basis of the extent to which the officer describes the steps of his/her investigation, his/her personal surroundings, the behavior of victims and witnesses, etc. Additionally, Police Officer recruits should be instructed that their objective in responding to a crime scene should not only be to take the victim's statement, but also to attempt to locate, identify and interview potential witnesses who can corroborate the victim's statement and possibly provide additional information on the suspect. In addition, recruits should be instructed to obtain written statements from all involved parties, to the extent possible.
- The Police Academy should continue to sponsor periodic report-writing classes, taught by Assistant DAs, for Sergeants and Field Training Officers who are responsible for reviewing patrol officers' incident

reports. Each Patrol Sergeant and Field Training Officer should be required to take these classes on a biannual basis in order to update their skills, or, alternatively, report-writing sessions should be regularly included as part of the 40-hour Advanced Training course, which is required of all sworn members every two years. Requiring Sergeants and Field Training Officers to take report-writing classes would reinforce the report-writing techniques learned at the Academy and thereby lessen the likelihood that commanding officers will encourage recruits to write reports in a manner which is different than what they learned at the Academy.

- As recommended by the Police Department, the SFPD should request that the DA's Office develop a formal system for returning any substandard Police reports back to the Police Department for review and evaluation. This would allow the Police Department to take corrective action as well as monitor the areas of report writing that need to be addressed in future training sessions.

- The Police Department may wish to consider, as a policy matter, establishing a higher minimum education standard for new officer recruits than the high school diploma, which is currently the minimum education requirement. However, according to the SFPD's Consent Decree Division, raising the educational standard for police officer recruits could potentially have a negative impact on minority representation in the Police Department. Thus, concurrently with raising the education standard, the Police Department should consider further expanding the pool of qualified applicants by recruiting applicants Statewide, in order to include counties that have greater minority representation.

Conclusions

Although the Police Department's report writing has improved in recent years, according to the District Attorney's Office, report-writing deficiencies are still one of the factors contributing to the high number of cases turned down for prosecution by the DA's Office.

According to the DA's Office and a study by the Coro Foundation, some factors contributing to poor report writing are the reversal of report-writing techniques learned in the Police Academy through consistent exposure to other members of the Department, and the Department's past and current recruiting policies.

We performed an independent review of a random sample of 40 incident reports for cases that were rejected by the DA. Although the reports appeared to be of fair to good quality, we found that many reports were missing critical elements such as descriptions of the steps of the Police Officer's investigation and personal observations. In addition, there was often no corroboration of the reporting party's statements that would normally be achieved by attempting to locate potential witnesses.

In order to improve the quality of Police report-writing, and further reduce the impact of reports on the DA's ability to file formal charges in cases, the Police Department should expand and improve report-writing instruction at the Police Academy and consider, as a policy matter, implementing less restrictive residency and higher education requirements for new officer recruits. Additionally, the SFPD should request that the DA's Office develop a formal system for returning any substandard Police reports back to the Police Department for review, evaluation and corrective action.

Recommendations

The Chief of Police should:

- 1.3.1 As a policy matter, consider establishing a higher minimum education standard for new officer recruits than the high school diploma, such as at least one year of college, and concurrently implementing less restrictive residency requirements.

1.3.2 Request that the District Attorney develop a formal system for returning any substandard Police reports back to the Police Department for review, evaluation and corrective action.

The Police Academy should:

1.3.3 Design exercises for basic training in report-writing which provide a greater emphasis on teaching recruits to describe the steps of their investigation, their personal observations and other details, obtain written statements from all involved parties (when possible), and attempt to locate and identify potential witnesses.

1.3.4 Continue to sponsor periodic report-writing classes, taught by Assistant District Attorneys, for Sergeants and Field Training Officers.

1.3.5 Regularly include report-writing sessions as part of the biannual Advanced Training course required of all sworn members.

Costs and Benefits

The implementation of our recommendations could be accomplished using existing staff and resources in the Police Department.

Implementing a higher minimum education standard and a less restrictive residency requirement for new officer recruits would expand the pool of *qualified* applicants and would improve the quality of police reports.

Implementing measures to improve Police report writing would increase the quality of investigations performed by the Police Department and could increase the number of cases which the District Attorney's Office accepts for prosecution.